

DEPARTMENT OF PUBLIC LAW

COURSE FRAMEWORK

INTRODUCTION TO CONSTITUTIONAL LAW AND STATUTORY INTERPRETATION

I 78

2026

NQF Level 6
Credits 18
Notional hours: 180

Table of contents

- 1. Word of welcome**
- 2. Contact**
 - 2.1 Lecturer(s): contact details & consultation hours
 - 2.2 Teaching assistant(s): contact details & consultation hours
 - 2.3 Departmental secretary: contact details
 - 2.4 Communication with parents
- 3. Contact sessions**
 - 3.1 Lectures
 - 3.2 Tutorials
 - 3.3 Notional hours
 - 3.4 Class and assessment timetable clashes
 - 3.5 Medical certificates
 - 3.6 Special Needs/Concessions for assessments/classroom environment
- 4. Teaching and learning approach**
- 5. Outcomes of the module**
- 6. Resources**
- 7. Assessment**
 - 7.1 Assessment strategy
 - 7.2 Assessment opportunities
 - 7.3 Calculation of Midyear Mark
 - 7.4 Calculation of Final Mark
 - 7.5 Assessment queries
- 8. Language policy**
- 9. Artificial Intelligence, Plagiarism and Copyright**
- 10. Writing Guide and Writing Assistance in the Faculty**
- 11. Study Tips and General Support**
- 12. Framework**

1. Word of welcome and prerequisite requirements

Welcome to Introduction to Constitutional Law and Statutory Interpretation 178. In this year module we will discuss the foundations and historical development of South African constitutional law, constitutionalism, constitutional supremacy, constitutional values, rule of law, democracy and separation of powers. We will also discuss the status and role of legislation as a source of law; dimensions, theories and principles of and approaches to constitutional and statutory interpretation; and the relation between language, context and values in constitutional and statutory interpretation.

2. Contact details

2.1 Lecturer(s)

Semester 1

Dr B Fox

Office: 1021 OUH

Email: Bfox@sun.ac.za

Consultations:

Please note that consultations are only to be scheduled via email, by contacting your lecturer directly. You are please to include a variety of days/times that you are available, subject to your class timetable, within the body of the email (do not attach a scan/copy of your timetable as an attachment to your email).

2nd semester

Prof H Botha

Office: Room 1004, CL Marais Library

Email: hbotha@sun.ac.za

Tel: 021 808 3195

Consultations:

Please note that consultations are only to be scheduled via email, by contacting your lecturer directly. You are please to include a variety of days/times that you are available, subject to your class timetable, within the body of the email (do not attach a scan/copy of your timetable as an attachment to your email).

Consultation and email communication policy:

Students are welcome to consult with lecturers during their consultation hours. Please note that lecturers will not address substantive queries regarding the module content through email correspondence. If you have a query regarding the module content, schedule an appointment with your lecturer as per the procedure outlined above in paragraph 2.1.

Emails seeking information where the information is already contained in either the course framework or the university's general rules and policies, or the Faculty's Calendar/Yearbook, or which has been announced in class or on SocSciLearn, will not be replied to. If you do not receive a reply to an email, please consult these sources of information.

Please note that emails or any behaviour that is rude, abusive or threatening will not be tolerated and the Faculty will not hesitate to institute disciplinary action in such circumstances. Students are furthermore requested to use the appropriate style guidelines and register that would be expected of written communication within a professional context.

Students are reminded to include, at the very least, the following in all email correspondence with your lecturer/faculty staff:

- Your full name and student number;
- Your degree programme; and
- The specific module that your correspondence is applicable to.

2.2 Assistant

Ms Zandri Swanepoel

Office: Room 1029 Old Main Building

Email: zandris@sun.ac.za

NB: Please note that all queries regarding the module should first be directed to the module assistant and **not** the departmental secretary.

Ms Swanepoel's working hours is as follows:

- Mondays 09:00-13:00
- Tuesdays 09:00-13:00
- Thursdays 09:00-16:00

NB: Please note that all queries regarding the module should first be directed to the module assistant and **not** the departmental secretary.

2.3 Departmental Secretary

Ms Sharon Fortuin
Office: Room 2042 Old Main Building
Email: publiclaw@sun.ac.za
Tel: 021 808 3195

2.4 Communication with parents:

SU respects students' privacy. That also means that SU recognises that students' personal information (including academic results) belongs to students and not to their parents and that there are no legal grounds on which SU may give the information to the parent, including in personal conversations, without the student's written consent.

We recognise with great appreciation parents' interest in their children and as a gesture of goodwill we will discuss students' study matters with their parents, but only with the written consent of the student concerned.

3. Contact sessions

3.1 Lectures: dates and themes/topics

There are two main lectures per week.

Lecture 1: Thursday 09h10 – 10h00 in Krotoa 1001

Lecture 2: Friday 08h10 – 09h00 in Arts 230

3.2 Tutorials:

During the first week of classes, you will be divided into groups according to the following times:

- Mondays at 08h10
- Mondays at 10h10
- Mondays at 12h10
- Mondays at 15h10
- Wednesdays at 12h10

Further information on tutorials, including the venues, will be made available on SocSciLearn

3.3 Notional hours

Notional hours represents the agreed estimated learning time taken by the average student to achieve the specified learning outcomes of a module (DHET, 2014; DHET,

2021). This is not a precise measure but indicates the amount of study time and degree of commitment expected. This includes, *inter alia*, consideration of contact time (in lectures and tutorials (if applicable)), any research, completion of assignments, individual learning of the content and all assessments. Each credit allocated to a module represents ten notional hours, i.e., a ten-credit module is equal to 100 notional hours and would indicate that the average student would need 100 hours to achieve the identified outcomes and obtain the necessary knowledge and skills.

Please note the following about the notional hours for Introduction to Constitutional Law and Statutory Interpretation 178:

- It is a year module comprising 18 credits, which means that students should spend 180 notional hours working on the module contents.
- The module is furthermore divided into 90 notional hours per semester.
- Both the first and second semester of 2025 is 13 weeks long.
- This division translates to roughly 6 hours per week that students should devote to Introduction to Constitutional Law and Statutory Interpretation 178 during both semesters.
- Students should bear in mind that 2 hours per week will be dedicated to contact lectures (including 1 hour per week for tutorials), the remaining 4 hours per week should be divided between time spent on preparing for lectures, engaging with prescribed material, carrying out formative and summative assessments (tests tutorials) and time spent on private study.

3.4 Class and assessment timetable clashes and attendance

Please note that no student is allowed to register for any two modules that may clash on either the class timetable or assessment schedule. It is the student's responsibility to check all timetables and make sure there are no clashes. Students are requested to consult the University's General Calendar, Part 1 ["Admission and Registration"] (2026), under "Application, admission and registration as a student", paragraph 4.2.7 ["Limitations regarding registration for modules on the basis of timetable clashes"] in regards to the aforementioned provisions.¹

Please note further the following wording from the University's General Calendar, Part 1 (2026), ["Assessments and promotions"], (6.) ["Generally applicable assessment rules"], paragraph 6.2.1, under the heading "Admission to assessments": "You shall not be admitted to the assessments in a module unless you are registered for the module, have attended the required contact sessions for the module and have, up to the assessment, satisfactorily performed the work prescribed in such module".² Please

¹ As updated annually. Please consult the latest version of the appropriate Yearbook, available at: <https://www.su.ac.za/en/about/governance/registrar/yearbooks>

² As updated annually. Please consult the latest version of the appropriate Yearbook, available at: <https://www.su.ac.za/en/about/governance/registrar/yearbooks>

note that class and (where offered) tutorial attendance is accordingly compulsory, as it constitutes an integral part of the outcomes and assessment criteria in this module.

3.5 Medical certificates

Students are requested to consult the University's General Calendar, Part 1 (2026) ["Admission and registration"] paragraph 12 ["Absence from academic activities"], which provides the overarching framework applicable to this section.³

The Faculty of Law wishes to clarify that the following medical certificates will NOT be accepted:

- a.) Medical certificates issued later than 24 hours from the time the assessment occurred or the submission date of an academic assignment; and/or
- b.) Medical certificates indicating that a student was not examined by the medical practitioner in person, i.e., where the medical practitioner uses the phrase "as I was informed" or a similar wording which suggests that the medical practitioner merely confirms the information provided by the student instead of having examined the student themselves. The certificate must accordingly indicate that it has been issued as a result of personal observation of the student by the practitioner (as opposed to merely a telephonic consultation or communication); and/or
- c.) In cases of mental health conditions, only medical certificates issued by psychiatrists, medical practitioners and registered clinical psychologists will be accepted. Furthermore, the student had to have been seen by the relevant psychiatrist, medical practitioner and registered clinical psychologists at the time of the mental health condition having prevented the writing of the assessment in question.

Please note that the abovementioned qualifications also apply to a medical certificate that is submitted to excuse an absence from class or a tutorial.

A hard copy of the medical certificate must be handed in to the departmental secretary on the first weekday following the official assessment date. In addition, a scanned copy may be sent electronically to your lecturer prior to the end of the first weekday following the official assessment date—before the hard copy is submitted to the departmental secretary. Should a student fail to hand in the medical certificate within this time period it will constitute the non-completion of the assessment opportunity/test.

³ As updated annually. Please consult the latest version of the appropriate Yearbook, available at: <https://www.su.ac.za/en/about/governance/registrar/yearbooks>

NOTE: No further concessions will be granted should a student miss the subsequent concessionary evaluation for whatever reason.

Whilst the Faculty is mindful of the need to be accommodating of both physical and mental health conditions, the point of departure remains dependent on the issuing of a valid medical certificate, so as to ensure fairness and consistency in application of the abovementioned procedures. Students are furthermore reminded of the various university services available, including Campus Health and the Centre for Student Counselling and Development.

3.6 Special Needs/Concessions for assessments/classroom environment

The Faculty of Law is committed to provide its students with special needs with academic and related support where reasonably feasible. Students with special needs should timeously engage and communicate with the relevant institutional structures (e.g. the University's Disability Unit) *and* their lecturers. Students are reminded that the assessment concession process is now managed within the SUNStudent platform, and are to familiarise themselves with the functionality of the application process. In respect of these assessment concessions, applications must be submitted via the necessary platform mechanism by the applicable deadlines as set annually by the University.

To be able to support students in the classroom environment (if applicable), students are requested to inform all of their lecturers of any specific needs and requirements within the first two weeks of the academic year and/or semester. This is to enable lecturers to consider the requests for accommodation, and to plan for the provision of reasonable accommodation where possible.

Note: Any such application for a concession is subject to reasonable accommodation within the capacity of the Faculty.

4. Teaching and learning approach

Introduction to Constitutional Law and Statutory Interpretation 178 consists of formal lectures, as well as practical sessions in the form of tutorials. Prescribed reading and cases are indicated in the respective study guides and form an essential part of the course. They should be studied in detail.

Here are a few hints about how to approach the study material:

- In this module you are required to engage with **a variety of sources and learning materials**, including the Constitution, legislation, case law and academic literature. These sources and materials are important and need to be studied. It is not sufficient simply to focus on the academic literature or the class notes.

- The sources and materials are interrelated, and must not be studied in isolation. It is important to be able to **integrate** them in a meaningful way.
- The study guides and the lectures provide important pointers as to the focus of each theme, and should assist you in integrating the different materials. It is nevertheless important to point out that the lectures are not meant to be comprehensive, and that you should use your class notes **together with**, and not as a substitute for, the prescribed materials.
- Students sometimes underestimate the importance of **case law**. Please do not make that mistake. It is important to be able to discuss case law and to use it to back up and substantiate your answers.
- You are required to **prepare** for lectures by reading the prescribed reading material for each theme.

5. Outcomes of the module

Upon completion of this module, you should be able to:

- Discuss the social and political forces and events that gave rise to the Constitution, 1996;
- Discuss the social, economic, political, global, and historical context within which the Constitution, 1996, is interpreted and applied;
- Discuss, apply, and evaluate the basic constitutional concepts, values and principles embedded in the 1996 Constitution;
- Identify and apply the rules governing the commencement and demise of legislation, and legislation's relationship to other sources of law;
- Compare, apply and critically evaluate different theories and dimensions of and approaches to constitutional and statutory interpretation.

6. Resources

A range of resources will be used in the module:

- Constitution of the Republic of South Africa, 1996.
- Prescribed textbook:
 - The prescribed textbook for the **first** semester is Kleyn D, Viljoen F, Zitzke E & Madi P *Beginner's Guide for Law Students* (5th edition) Juta (2018)⁴
 - The prescribed textbook for the **second** semester is Botha C *Statutory Interpretation: An Introduction for Students* (6th edition) Juta (2022)..⁵
- Prescribed case law, journal articles and extracts from books:
 - Prescribed case law, journal articles and extracts from books will be listed in the study guides.

⁴ This book is also the prescribed textbook for other law modules, including, Foundations of Law 178.

⁵ An electronic copy of this book is available via the library website for six simultaneous users.

Students are reminded that the compulsory and optional resources may be supplemented during the course of the module. Any supplement to the compulsory and optional resources shall be announced in class and be made available on SunLearn. Students are reminded that should supplementary resources be added, this course framework shall not necessarily be updated. Class attendance is therefore imperative.

7. Assessment

Students are reminded that no assumptions are to be made regarding the assessment strategy or approach within a particular module, with significant variations being possible within the same Department, or year group. Please be sure to read through the following paragraphs carefully, and to stay abreast of any announcements made on SocSciLearn or in class by your lecturers, in order to familiarise yourself with what is required to successfully complete a module.

7.1 Assessment strategy

Introduction to Constitutional Law and Statutory Interpretation 178 will be assessed through the flexible assessment system, which means that the assessment is a process by which you are systematically assessed through consecutive opportunities during the course of the year using a variety of assessment methods. In addition to this section on assessment in the module framework, also note the general rules regarding assessment in Part 1 of the University's Calendar and the Undergraduate Assessment Rules of the Faculty of Law.

Please note the following in relation to the assessment strategy for Introduction to Constitutional Law and Statutory Interpretation 178:

- No formal class mark is obtained and only a mid-year mark ("MY"), and final mark ("FM") is entered into the central system of the University on the prescribed date for the mid-year mark and the final mark.
- The FM will be determined based on your work during the assessment opportunities as described below.
- An incomplete will be loaded on the academic transcript of a student who has not completed the predetermined number of assessment opportunities.
- A valid FM of at least 50% must be achieved to pass the module.
- To obtain a valid FM, students must complete at least three main summative assessment opportunities (i.e. at least three of A1S1, A2S1, A1S2, A2S2 and A3). Therefore, if a student has, for example missed A1S1, A2S2 and A3, the student cannot pass the module and the student's FM will be capped at 45 (which is a fail).

7.2 Assessment opportunities

Introduction to Constitutional Law and Statutory Interpretation 178 is a year module. The module has five main summative assessment opportunities (A1S1, A2S1, A1S2, A2S2 and A3) and a further summative assessment opportunity ("AF" for assessment further). The type, weight (only if the assessment contributes to the final mark ("FM")) and date of these respective assessment opportunities are as follows:

Assessment opportunity	Type of assessment	Weight of assessment towards FM	Date of assessment
Assessment Further (AF) – S1	Tutorials & Online quizzes	0.05	Will be announced on SocSciLearn
A1S1 (TEST)	Invigilated, sit-down, limited-time assessment	0.15	16 April 2026
A2S1 (TEST)	Invigilated, sit-down, limited-time assessment	0.20	8 June 2026 (09h00)
Assessment Further (AF) – S2	Tutorials & Online quizzes	0.10	Will be announced on SocSciLearn
A1S2 (TEST)	Invigilated, sit-down, limited-time assessment	0.20	1 October 2026
A2S2 (TEST)	Invigilated, sit-down, limited-time assessment	0.30	26 October 2026 (09h00)
A3 (TEST)	Invigilated, sit-down, limited-time assessment	See paragraph below for information on the A3.	19 November 2026 (09h00)

NB: It is the student's responsibility to check, with the aid of the University's official time-tables, the relevant dates and you must also establish the correct times and venues for the invigilated limited-time assessments (A1S1, A2SI, A1S2, A2S2 and A3).

It is every student's duty to ascertain the venues and time of commencement of a particular assessment and to be at the correct place on time. Your lecturers are not responsible for providing information in this regard.

Please note the following with regard to the above-mentioned assessment opportunities:

Assessment further ("AF"):

- During the course of the year, there will be a number of opportunities to learn (formative assessments).
- These opportunities will take the format of tutorial exercises and online quizzes.
- It is compulsory for students to attend tutorials. Your attendance and participation during these tutorials will count towards the AF mark (15% of final mark).
- The work to be prepared for the tutorials will be communicated to you during lectures. This information, along with your tutorial assignment, will also be made available on SocSciLearn .
- Note the following with regard to tutorials:
 - You must make a bona fide attempt to complete the tutorial.
 - You must attend all tutorials. Your attendance of tutorials will be recorded on a register throughout the year. You will be awarded a mark for every tutorial that you attend (**attendance mark**).
 - A further mark will be awarded for every tutorial assignment you submit (**submission mark**). Please note that no mark will be awarded if your tutorial assignment does not comply with the following formal requirements:
 - The tutorial must be typed.
 - It must be submitted online via SocSciLearn; no late submissions will be accepted.
 - All tutorials must include a signed plagiarism declaration / an acceptance of the plagiarism declaration if available online. Failure to sign or agree to the plagiarism declaration will result in the tutorial submission being viewed as a non-submission.
 - The tutorial must comply with the style guidelines contained in the faculty's Writing Guide. It is, for instance, critically important that you carefully follow the guidelines regarding the citation of literature.

- The tutorial must be accompanied by a bibliography indicating all the sources used for completion of the tutorial. Failure to include a bibliography will result in the tutorial submission being viewed as a non-submission.
- Your tutorial assignment must not exceed the prescribed maximum length and must not be shorter than the prescribed minimum.

If you are unable to attend a tutorial class or submit your typed assignment for a legitimate reason (for example as a result of illness or another reason like death in the family) a doctor's certificate or other **written proof** needs to be presented to the module assistant. The module assistant, in conjunction with the lecturers, has the discretion to accept the excuse.

Online quizzes will be announced during lectures and also contribute towards the AF mark.

- **Students are not permitted to use any AI application during the completion of the tutorial / assignment. Students are referred to the AI Tool kit on SocSciLearn.**

A1S1, A2S2, A1S2 and A2S2:

- These four summative assessment opportunities **are invigilated (on-campus) with limited time for each assessment**. Each test contributes a particular percentage towards your final mark. Please take note of the weightings above.
- The content of these assessment opportunities will be communicated on SocSciLearn closer to the time of the assessment.

A3:

A student will **only** have access to A3 if any one of the following scenarios applies:

- a) A student missed any one of A1S1 or A2S1 or A1S2 or A2S2 for whatever reason (students are not required to submit a medical certificate or other proof of a valid excuse for missing A1S1 or A2S1 or A1S2 or A2S2). A3 **is a substitute main assessment for A1S1 or A2S1 or A1S2 or A2S2** in this scenario a).
- b) A student missed any two of A1S1 and/or A2S1 and/or A1S2 and/or A2S2 for whatever reason (students are not required to submit a medical certificate or other proof of a valid excuse for missing A1S1 or A2S1 or A1S2 or A2S2). A3 **is a substitute main assessment for A1S1 and/or A2S1 and/or A1S2 and/or A2S2** in this scenario b).

- c) A student completed A1S1, A2S1, A1S2 and A2S2, but has not yet achieved a FM of at least 50 after A2S2. **A3 is a supplementary main assessment** in this scenario c).
- d) A student missed more than two of A1S1 and/or A2S1 and/or A1S2 and/or A2S2 for whatever reason (students are not required to submit a medical certificate or other proof of a valid excuse for missing A1S1 or A2S1 or A1S2 or A2S2). Please note that such a student will not be able to obtain a valid FM and will thus not be able to pass the module after A3.

7 3 Calculation of mid-year mark

MY (mid-year) marks are calculated after A2S1.

If a student wrote both A1S1 and A2S1, the following formula will be applied to calculate the mid-year mark (the percentage marks of AFS1, A1S1 and A2S1 are combined according to their respective weights):

$$MY = (0.10/0.40 \times \text{percentage mark AFS1}) + (0.15/0.40 \times \text{percentage mark A1S1}) + (0.25/0.40 \times \text{percentage mark A2S1})$$

If a student wrote only A1S1, the following formula will be applied to calculate the mid-year mark (the percentage marks of AFS1 and A1S1 are combined according to their respective weights):

$$MY = (0.05/0.20 \times \text{percentage mark AFS1}) + (0.15/0.20 \times \text{percentage mark A1S1})$$

If a student wrote only A2S1, the following formula will be applied to calculate the mid-year mark (the percentage marks of AFS1 and A2S1 are combined according to their respective weights):

$$MY = (0.05/0.25 \times \text{percentage mark AFS1}) + (0.20/0.25 \times \text{percentage mark A2S1})$$

If a student wrote neither of the A1S1 or A2S1 assessments, the mid-year mark will be zero.

7 4 Calculation of FM

Calculation of FM after A2S2

A FM is calculated after A2S2 if a student completed A1S1, A2S1, A1S2 and A2S2, taking the weights of and percentage marks achieved in AFS1, AFS2, A1S1, A2S1, A1S2 and A2S2 into account.

Therefore, the FM after A2S2 if a student completed A1S1, A2S1, A1S2 and A2S2 is calculated according to the following formula:

percentage mark AFS1 (0.05) + percentage mark AFS2 (0.10) + percentage mark A1S1 (0.15) + percentage mark A2S1 (0.20) + percentage mark A1S2 (0.20) + percentage mark A2S2 (0.30).

Please note:

A student passes Introduction to Constitutional Law and Statutory Interpretation 178 if after A2S2 the FM is at least 50%. Such a student has no access to A3 (see paragraph 7.2 above).

A student fails Introduction to Constitutional Law and Statutory Interpretation 178 if after A2S2 the FM is below 50%. Such a student will have access to A3 (see paragraph 7.2 (c) above).

Calculation of FM after A3

In all the formulas below, if a student did not complete an assessment, a percentage mark of zero is awarded for that assessment.

- a) If A3 is a substitute main assessment for a student who missed any one of A1S1, A2S1, A1S2 or A2S2 (the scenario in paragraph 7.2 a) above), A3 carries the weight of the one missed assessment. A FM is calculated after A3, taking the percentage marks achieved in AFS1, AFS2, A3 and the three other main assessments of A1S1, A2S1, A1S2 and A2S2 into account.

Therefore, the FM after A3 if a student missed *one* main assessment before A3 is calculated according to the following formulas:

If A1S1 was missed, A3 carries the weight of 0.15: percentage mark AFS1 (0.05) + percentage mark AFS2 (0.10) + percentage mark A3 (0.15) + percentage mark A2S1 (0.20) + percentage mark A1S2 (0.20) + percentage mark A2S2 (0.30).

If A2S1 was missed, A3 carries the weight of 0.20: percentage mark AFS1 (0.05) + percentage mark AFS2 (0.10) + percentage mark A1S1 (0.15) + percentage mark A3 (0.20) + percentage mark A1S2 (0.20) + percentage mark A2S2 (0.30).

If A1S2 was missed, A3 carries the weight of 0.15: percentage mark AFS1 (0.05) + percentage mark AFS2 (0.10) + percentage mark A1S1 (0.15) + percentage mark A2S1 (0.20) + percentage mark A3 (0.20) + percentage mark A2S2 (0.30).

If A2S2 was missed, A3 carries the weight of 0.30: percentage mark AFS1 (0.05) + percentage mark AFS2 (0.10) + percentage mark A1S1 (0.15) + percentage mark A2S1 (0.20) + percentage mark A1S2 (0.20) + percentage mark A3 (0.30).

Note that the FM after A3 is not capped at 50 in any of these scenarios where one main assessment was missed.

- b) If A3 is a substitute main assessment for a student who missed any two of A1S1 and/or A2S1 and/or A1S2 and/or A2S2 (the scenario in paragraph 7.2 b) above), A3 carries the weight of the two missed assessments. A FM is calculated after A3, taking the percentage marks achieved in AFS1, AFS2, A3 and at least two other main assessments of A1S1 and/or A2S1 and/or A1S2 and/or A2S2 of into account.

Therefore, the FM after A3 if a student missed two main assessments before A3 is calculated according to the following formulas:

If A1S1 and A2S1 were missed, A3 carries the weight of $0.15 + 0.20 = 0.35$: percentage mark AFS1 (0.05) + percentage mark AFS2 (0.10) + percentage mark A3 (0.35) + percentage mark A1S2 (0.20) + percentage mark A2S2 (0.30).

If A1S1 and A1S2 were missed, A3 carries the weight of $0.15 + 0.20 = 0.35$: percentage mark AFS1 (0.05) + percentage mark AFS2 (0.10) + percentage mark A3 (0.35) + percentage mark A2S1 (0.20) + percentage mark A2S2 (0.30).

If A1S1 and A2S2 were missed, A3 carries the weight of $0.15 + 0.30 = 0.45$: percentage mark AFS1 (0.05) + percentage mark AFS2 (0.10) + percentage mark A3 (0.45) + percentage mark A2S1 (0.20) + percentage mark A1S2 (0.20).

If A2S1 and A1S2 were missed, A3 carries the weight of $0.20 + 0.20 = 0.40$: percentage mark AFS1 (0.05) + percentage mark AFS2 (0.10) + percentage mark A3 (0.40) + percentage mark A1S1 (0.15) + percentage mark A2S2 (0.30).

If A2S1 and A2S2 were missed, A3 carries the weight of $0.20 + 0.30 = 0.50$: percentage mark AFS1 (0.05) + percentage mark AFS2 (0.10) + percentage mark A3 (0.50) + percentage mark A1S1 (0.15) + percentage mark A1S2 (0.20).

If A1S2 and A2S2 were missed, A3 carries the weight of $0.20 + 0.30 = 0.50$: percentage mark AFS1 (0.05) + percentage mark AFS2 (0.10) + percentage mark A3 (0.50) + percentage mark A1S1 (0.15) + percentage mark A2S1 (0.20).

Note that the FM after A3 is not capped at 50 in any of these scenarios where two main assessments were missed.

- c) If A3 is a supplementary main assessment for a student who completed A1S1, A2S1, A1S2 and A2S2 but did not achieve a FM of at least 50 after A2S2 (the scenario in paragraph 7.2 c) above), the final mark after A3 is the higher of the following 4 results:

percentage mark AFS1 (0.05) + percentage mark AFS2 (0.10) + percentage mark A3 (0.15) + percentage mark A2S1 (0.20) + percentage mark A1S2 (0.20) + percentage mark A2S2 (0.30).

percentage mark AFS1 (0.05) + percentage mark AFS2 (0.10) + percentage mark A1S1 (0.15) + percentage mark A3 (0.20) + percentage mark A1S2 (0.20) + percentage mark A2S2 (0.30).

percentage mark AFS1 (0.05) + percentage mark AFS2 (0.10) + percentage mark A1S1 (0.15) + percentage mark A2S1 (0.20) + percentage mark A3 (0.20) + percentage mark A2S2 (0.30).

percentage mark AFS1 (0.05) + percentage mark AFS2 (0.10) + percentage mark A1S1 (0.15) + percentage mark A2S1 (0.20) + percentage mark A1S2 (0.20) + percentage mark A3 (0.30).

In essence, **A3 thus replaces the worst of a weighted** A1S1, A2S1, A1S2 or A2S2 mark (and not just the worst of the A1S1, A2S1 A1S2 or A2S2 mark).

Note that the FM after A3 in this scenario:

- i) **is capped at 50; and**
- ii) **cannot be less than the FM after A2S2.**

d) If A3 is a main assessment for a student who missed more than two of A1S1 and/or A2S1 and/or A1S2 and/or A2S2 (the scenario in paragraph 7.2 d) above), the final mark after A3 is the higher of the following 4 results:

percentage mark AFS1 (0.05) + percentage mark AFS2 (0.10) + percentage mark A3 (0.15) + percentage mark A2S1 (0.20) + percentage mark A1S2 (0.20) + percentage mark A2S2 (0.30).

percentage mark AFS1 (0.05) + percentage mark AFS2 (0.10) + percentage mark A1S1 (0.15) + percentage mark A3 (0.20) + percentage mark A1S2 (0.20) + percentage mark A2S2 (0.30).

percentage mark AFS1 (0.05) + percentage mark AFS2 (0.10) + percentage mark A1S1 (0.15) + percentage mark A2S1 (0.20) + percentage mark A3 (0.20) + percentage mark A2S2 (0.30).

percentage mark AFS1 (0.05) + percentage mark AFS2 (0.10) + percentage mark A1S1 (0.15) + percentage mark A2S1 (0.20) + percentage mark A1S2 (0.20) + percentage mark A3 (0.30).

In essence, **A3 thus replaces the worst of a weighted** A1S1, A2S1, A1S2 or A2S2 mark (and not just the worst of the A1S1, A2S1, A1S2 or A2S2 mark).

Note that the FM after A3 in this scenario is capped at 45 (which is a fail).

7.5. Assessment queries

In the event that students wish to discuss or query an assessment result, they are expected to arrange a consultation via email with the lecturer **not later than 1 week** after the release of the memorandum/class/tutorial discussion of the assessment. Furthermore, the student is expected to provide written motivation for the reassessment based on the provided memorandum in the email request for a consultation.

No queries or adjustments of assessment results will be entertained in the absence of the student having proof of their attempts at arranging said consultation within the timeframe mentioned above.

8. Language policy

Please refer to the applicable policy website of the University, the Faculty's website,⁶ and the Law101 SocSciLearn module for the latest updated information about the University language policy and Faculty's language implementation plan, and for a detailed explanation of the implications of the language options below.

Language option of this module:

Dual-medium;

9. Artificial Intelligence, plagiarism and copyright

Please refer to the applicable yearbook and policy websites of the University, the Law101 SocSciLearn site, and the Faculty's website (Students/Current Students),⁷ for the latest updated information about the use of artificial intelligence, plagiarism and copyright.

You are specifically referred to the "SU Faculty of Law Generative Toolkit: Navigating the Use of Generative AI in Legal Education" document, which provides a comprehensive overview of the Faculty's position on the use of generative AI during your studies. You can access the following documents on the aforementioned website(s), or you will be provided with specific guidance by your lecturers regarding

⁶ <https://www.su.ac.za/en/faculties/law>

⁷ <https://www.su.ac.za/en/faculties/law>

any required procedures for submitting assignments, or completing any forms of assessment:

- SU Policy on Plagiarism;
- SU Guidelines on Allowable AI Use and Academic Integrity in Assessment (currently under review/as updated/finalised);
- SU Teaching-Learning Policy (2025);
- SU Assessment Policy (2022);
- SU Student Code of Conduct;
- SU Information Security Policy;
- SU Faculty of Law Gen-AI Toolkit;
- Plagiarism and artificial intelligence guidelines in respect of written assignments, essays, research, papers and tutorials completed under the auspices of the Faculty of Law, as per the Faculty's Writing Guide;
- Plagiarism and/or AI Use Declaration and Checklist; and
- Cover page for assignments (with plagiarism declaration).

10. Writing Guide and Writing Assistance in the Faculty

Consult the Faculty's Writing Guide (2025) for referencing and style guidelines. While the SU Language Style Guide (available on the SU website) can be used as a supplementary resource on language usage, the Writing Guide is considered the Faculty's official style guide and takes precedence. Thus, should you encounter any discrepancies between the two, follow the Writing Guide.

Should you encounter problems with the writing, style, or structure of your assignment, make an appointment with one of the Faculty's writing consultants. Visit the [MS Bookings page](#) to make an appointment.⁸

For more information, please visit the Faculty website or the Law101 SocSciLearn site. Alternatively, contact the Faculty's Writing and Media Coordinator, Ms Desiré Maré (dmare@sun.ac.za), if you have any queries.

11. Study tips and general support

Please refer to the Law101 SocSciLearn module for information on study tips specifically aimed at Law students.

You are also encouraged to arrange a consultation with the Faculty's Legal Education and Student Coordinator, Dr Bradley Greenhalgh — should you wish to discuss your approach to studying law, or have any related academic queries. Appointments with Dr Greenhalgh can be scheduled using the online Calendly booking system, using the following link: www.calendly.com/bradleyg

⁸ MS Bookings page:

<https://outlook.office365.com/owa/calendar/WritingConsultations@stellenbosch.onmicrosoft.com/bookings/>.

You are furthermore reminded of Ms Gabriella Jordan, who is the registered counsellor from the Centre for Student Counselling & Development (CSCD), that has been specifically dedicated to the Law Faculty, to thereby provide additional support to our law students. Appointments can be arranged with Ms Jordan, who also sits in the Faculty on certain days of the week, by way of sending an email to gcjordan@sun.ac.za (and CC'ing studysuccess@sun.ac.za).

12. Framework

For this module, there will be two study guides outlining the theme to be discussed each week. The first one will pertain to the Introduction to Constitutional Law, dealt with in the 1st semester. It is available on SUNLearn. The second one will pertain to Statutory Interpretation, dealt with in the 2nd semester. The second study guide will be available at the start of the 2nd semester.